

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MONGOLIA

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## *Complete Community Opposition How-To*

This is a practical manual for herders, soum and bagh residents, and citizens' movements who wake up to find that a pasture, a river headwater, a sacred mountain, a spring, or a stretch of steppe they depend on has been opened to something destructive — a mining licence, an open pit, a coal project, a road, a diversion of a river. It explains how Mongolia's approval system for large projects actually works, where the real openings are, what to document, how to organise, and how to use the levers Mongolian law and Mongolia's own history of herder resistance provide. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

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## INTRODUCTION & FRAMEWORK

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### Why This Matters

Across Mongolia, communities discover that a place they live from — a river's headwaters, a spring, a stretch of winter pasture, a forested slope, a sacred ovoo or mountain, the thin water of the Gobi — has been licensed to a mining company or an industrial project, often by officials far away and without the herders who graze there ever being meaningfully consulted. The first sign is usually the trucks and drilling rigs, the bulldozed track across the pasture, the fenced exploration block, the river channel being re-cut, or the quiet news that an environmental impact assessment was approved and a licence issued to a company few local people had heard of.

Mongolia's situation is unusual and, in one respect, hopeful. This is a country where mining dominates the economy — accounting, in recent boom years, for a large majority of exports and a substantial share of GDP — and where the pressure on land and water is intense. But it is also a country whose herder communities have, more than once, forced the state to act. The single most important fact for any Mongolian community to hold onto is this: **ordinary herders in Mongolia have written national law with their own hands, and have made the Supreme Court order the government to obey it.** That is not a slogan. It is the documented record of the river movements, and it is the ground this guide stands on.

The struggle that teaches both truths a community must hold at once is the fight over mining at the headwaters of rivers. When gold and other mining began drying up river systems — the Ongi River, once more than four hundred kilometres long, shrank drastically and the Ulaan Lake it fed dried out — herders and citizens organised the Ongi River Movement, founded in 2001 under the herder and local leader Tsetsegee Munkhbayar, and later the broader United Movement of Mongolian Rivers and Lakes (UMMRL). They did not merely protest. They drafted a law with their own volunteer lawyers and academics, they camped and, when Parliament stalled, held a hunger strike in front of the Parliament House, and on 16 July 2009 they forced the adoption of the law Mongolians simply call **the Law with the Long Name** — the Law to Prohibit Mineral Exploration and Mining Operations at the Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas. When the government then failed to enforce it, they went to court, and in 2011 the Supreme Court agreed with them and ordered the government to enforce the law. Munkhbayar's work had already won him the Goldman Environmental Prize in 2007. That is real power, and it is Mongolian.

The second truth is sobering. **Writing the law and winning the order did not, by itself, protect the rivers.** The Law with the Long Name — designed to shield up to roughly a quarter of Mongolia's ecosystems from mining — has been chronically under-implemented; mining has continued in protected zones; the mining ministry and industry have pushed repeatedly to weaken it through amendments; and in 2013, when activists staged a desperate armed protest against those amendments, several were arrested and prosecuted on grave charges. In 2019 the river movements went back to court, suing the government and the environment ministry for illegal inaction in failing to implement the law. Mongolia shows both what a determined community can achieve — a national law, a court order, delay, exposure, real cost to a company — and how hard it is to convert a paper victory into protection on the ground when the state and the mining industry push the other way.

Underneath both truths is the framework this guide will help you use: **Mongolia is a democracy with a written constitution that guarantees the right to a healthy and safe environment, an environmental-impact-assessment law with real procedural requirements, a system of Administrative Cases Courts built specifically to let citizens challenge government acts, a right-to-information law, a free and combative press, active national environmental movements, and — for foreign-financed projects — international grievance**

**mechanisms that a company's financiers cannot ignore.** Protest, petition, and litigation are lawful. That combination is what this guide is about.

## The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A mining or industrial project in Mongolia needs an exploration or mining licence; it needs an approved environmental impact assessment and an environmental management plan; it must avoid the areas the Law with the Long Name and the protected-areas laws put off-limits; it depends on water, which in much of Mongolia is scarce and legally protected; it must survive the Administrative Cases Courts and the constitution's environmental guarantee; and — if it is financed by the World Bank's IFC, MIGA, the EBRD, or a listed multinational — it must survive the scrutiny of grievance mechanisms and a watching world. Each of these is a potential point of leverage.

Two features of Mongolia sharpen this framework. The first is water: across much of the country, and above all in the Gobi, water is scarce, and a mine's demand for it — and its diversions and dewatering — is frequently the true heart of the harm, which is why the water-source and headwater protections are so central. The second is scale and remoteness: licences cover vast, thinly populated areas that are hard to monitor, so the community that is actually present on the land holds something valuable — eyes on the ground, and the ability to document what distant regulators never see.

Your task is to find the link you can reach. Sometimes it is the environmental impact assessment and a defect in it — a consultation that never happened, an impact on water that was never assessed. Sometimes it is the licence itself, issued over a protected headwater or forest where the Law with the Long Name forbids it. Sometimes it is the water, and the specific laws that guard river sources, springs, and reservoirs. Sometimes it is the Administrative Cases Court. And often — for the big foreign-financed mines — it is the international grievance mechanism and the financier pressure that a company cannot escape, as the Khanbogd herders showed at Oyu Tolgoi.

## Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying to you.

**Where a project sits on a protected headwater, forest, or water-reservoir zone, or its environmental assessment has a real defect, and you can organise and reach the courts and — for a financed project — the grievance mechanisms and the press, Mongolia's levers are genuine.** The river movements' law and the 2011 Supreme Court order are the proof of what is possible; the Khanbogd herders' agreement with Oyu Tolgoi is the proof that a foreign-financed mine can be made to commit and to compensate.

**Where the government and the mining industry back the project, where the licence is already deep in production, and where the courts and enforcement agencies prove unwilling, the outright stop is hard, and resisting can carry personal risk.** The chronic non-enforcement of the Law with the Long Name, the repeated attempts to gut it, and the 2013 arrests are the warning. There the levers still matter, but you must weigh the odds honestly and think in terms of enforcement of existing protections, delay, binding commitments, compensation, water safeguards, and exposure as much as an outright stop.

Much of this guide is designed to help you judge which situation you are in.

## How to use this guide

Read the whole thing once before acting. Read the legal, organising, and tilted-system sections with particular care, because in Mongolia the environmental impact assessment, the water-and-forest protections, the Administrative Cases Courts, and — for financed projects — the international grievance mechanisms are the sharpest levers, and the government's stance shapes everything. Two principles run throughout. First, **stand on the protections that already exist:** Mongolia's problem is far more often non-enforcement than absence of law, so much of your work is forcing officials to apply protections that are already on the books. Second, **combine the strands:** documentation, the assessment challenge, the water-and-forest law, the courts, the press, and international attention work far better together than any one alone — exactly as the river movements and the Khanbogd herders combined them.

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## HOW THE SYSTEM WORKS

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To break the chain you must understand it. This section explains the levels of decision, the journey a project takes from

licence to construction, how to follow the money behind it, and who is supposed to be watching.

## The Levels of Decision

Decisions about large projects in Mongolia are made at several levels, and the level determines where you push.

**National level.** The most consequential decisions are national. Mineral exploration and mining licences are issued by the national minerals authority. The environmental impact assessment for a significant project — the Detailed EIA — is reviewed and approved at the level of the Ministry of Environment (the ministry responsible for the environment, whose exact name has changed over the years; treat "the environment ministry" as the body that approves detailed assessments and expert reviews). National laws — the Law on Environmental Impact Assessment, the Law on Environmental Protection, the Water Law, the Law on Forests, the Law on Special Protected Areas, the Minerals Law, and the Law with the Long Name — set the rules the whole system must follow.

**Aimag (provincial) level.** Each aimag (province) has a governor and a Citizens' Representatives Khural (the elected local assembly). Provincial environment departments and inspectors administer and monitor much of what happens on the ground. Aimag authorities have real influence over local licences, land allocation, and the practical conduct of monitoring and enforcement.

**Soum (district) and bagh level.** The soum (district) is the level closest to the herders — the soum governor, the soum Citizens' Representatives Khural, and the bagh (the smallest unit) meetings where herder households gather. Local land use, seasonal pasture, and the conduct of local consultations run through here. Crucially, the mandatory public meetings that an environmental assessment must document are meetings of these local people. The soum and bagh are both where the harm lands and where your organising begins.

A word of honest caution about land rights. Unlike some countries where communities own their land outright, in Mongolia pastureland is largely common land, and herder households hold rights of use and possession over seasonal pastures and camps rather than freehold ownership, while the subsoil and its minerals are constitutionally the property of the state. This matters for strategy: your leverage rests less on a veto grounded in ownership than on the environmental, water, and forest protections, the assessment's consultation requirements, and the possession and customary-use rights that the harm violates. Frame your case accordingly — around the protected zones, the water, the botched consultation, and the concrete damage to livelihoods — rather than around a property claim the law may not support.

**The point:** match your effort to the level that holds the decision you are trying to affect. A licence and a Detailed EIA are national; monitoring, local land use, and the consultation record are provincial and local; and the herder households whose consent and testimony matter most are at the bagh.

## A Project's Journey — and Where It Can Be Stopped

A large mining or industrial project typically moves through recognisable stages. Each is a potential intervention point.

**1. Licence application and grant.** A company applies for an exploration and, later, a mining licence over a defined area. *Intervention point:* whether the licensed area overlaps a protected headwater, forest, water-reservoir zone, or special protected area where the Law with the Long Name or the protected-areas law forbids mining — and whether the licence should therefore never have been granted.

**2. Screening and General EIA.** Mongolia's assessment system is tiered. A project is first screened, and a General Environmental Impact Assessment (a general assessment) determines whether it may proceed, may proceed with conditions, or requires a full Detailed Environmental Impact Assessment. *Intervention point:* the screening and general-assessment decision, and whether the project was wrongly waved through without a detailed assessment it plainly needed.

**3. Detailed EIA (DEIA) and environmental management plan.** For significant projects a Detailed EIA is prepared by a licensed assessment company at the project sponsor's expense, reviewed by the environment ministry's experts, and — if approved — comes with an environmental management plan. By law the DEIA report must include the record of consultation with the local people who will be affected. *Intervention point:* the substance and legality of the DEIA — its treatment of water, pasture, cumulative impacts, and above all the reality and adequacy of the public consultation it claims.

**4. Water, land, and related permits.** Mining needs water, and water use requires its own permits; the project needs land access and may need to divert or dam water. *Intervention point:* the water permits and any river diversion, which in Mongolia's arid landscape are often the true heart of the harm — as the Undai River diversion was at Oyu Tolgoi.

**5. Construction and operation.** The pit is dug, the roads are built, the water is drawn. *Intervention point:* monitoring

and enforcement — whether the project is complying with its assessment, its management plan, and its permits, and whether violations can be documented and acted on.

A note on how the assessment is actually produced and policed, because its weak points are your openings. The Detailed EIA is not written by the government but by a licensed assessment company that the project sponsor hires and pays — a structural tension you should keep in mind, since the assessor's client is the very company whose project it is evaluating. The report is then reviewed by the environment ministry's experts and technical board before approval. The law also carries real teeth on paper: activities carried out without a proper environmental impact assessment can be ordered terminated, and income arising from them can be confiscated; the framework embraces the "polluter pays" principle, making a polluter liable to compensate for the damage caused. These sanctions are frequently under-used, but they exist — and a community that documents a project operating without the assessment the law requires is pointing at a violation the state is empowered to punish.

The chain has many links. Your job is to find the one nearest to hand.

## Follow the Money and the Permissions

Behind every project is a structure of ownership, finance, and permission you can map — and mapping it tells you where the pressure points are.

**Who holds the licence?** The mineral licence register tells you who legally holds the exploration or mining right, its area, and its dates. A licence over a protected zone is itself a vulnerability.

**Who owns and runs the company?** Many large projects are run by subsidiaries of foreign multinationals or joint ventures with the state. Oyu Tolgoi, for instance, is operated by Oyu Tolgoi LLC and is majority-controlled by a subsidiary of the multinational Rio Tinto, with the Mongolian state holding a substantial stake. Ownership determines reputational exposure and which international levers apply.

**Who is financing it?** This is often decisive. If a project is financed by the World Bank Group's International Finance Corporation (IFC) or guaranteed by its Multilateral Investment Guarantee Agency (MIGA) — as Oyu Tolgoi was — then the affected community has access to the **Compliance Advisor Ombudsman (CAO)**, the independent grievance mechanism the Khanbogd herders used. If it is financed by the EBRD or the Asian Development Bank, those banks have their own accountability mechanisms. If the parent is a company listed on a foreign stock exchange, it answers to investors and to home-country scrutiny. Public disclosure documents, financing announcements, and company reports let you trace the money — and every financier is a potential point of leverage.

Oyu Tolgoi is worth studying as the fullest Mongolian example of how finance becomes leverage. The mine sits in the South Gobi, in Ömnögovi aimag near Khanbogd soum; it was financed by the IFC and carried a MIGA guarantee reported at up to a billion US dollars, and its integrated environmental and social impact assessment was disclosed, in English and Mongolian, in 2012. When the company diverted the seasonal Undai River around its open pit, the Khanbogd herders did not have to rely on the Mongolian courts alone — the financing itself gave them a door into the CAO. The eventual 2017 agreements ran to roughly sixty commitments and even bound the company to redesign a waste-rock dump so as not to touch a local sacred site. Years on, researchers and herders report that a substantial share of the commitments are met or in progress while others lag, clean water chief among them — a reminder that even a landmark agreement must be monitored and enforced.

## Who Is Supposed to Be Watching

Several institutions exist to check power, and each is a potential ally or venue.

**The environment ministry and its inspectors** review assessments and are meant to monitor compliance — and can be pressed, formally and publicly, to do so.

**The Administrative Cases Courts** exist precisely to review whether a government act — a licence, an assessment approval, a land decision — was lawful. Established in 2004, this is the citizen's route into court against the state, and it is examined in detail below.

**The Constitutional Court (the Tssets)** guards the constitution, including its environmental guarantee, and can be reached where a law or act offends the constitution.

**The National Human Rights Commission** can take up rights concerns, including where environmental harm and the suppression of protest threaten fundamental rights.

**The Independent Authority Against Corruption (IAAC)** investigates corruption, to which mining licensing is

chronically exposed.

**The free press and national movements** — the river-and-lake movements, watchdog groups, and environmental NGOs — are experienced, well-connected, and often your fastest route to national attention.

**International grievance mechanisms** — the IFC/MIGA CAO, the EBRD and ADB mechanisms — watch the financiers of the big projects.

No single one of these is a guarantee. Together they are the architecture of accountability this guide teaches you to use.

## QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Mongolian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project sits in an area the water-and-forest or protected-areas law already puts off-limits, whether the environmental assessment has a real defect, whether the project depends on international finance, and how firmly the state and the mining industry back it. Where an existing protection applies and the world (or a financier) is watching, Mongolia's levers are real; where the government champions the project and enforcement agencies prove unwilling, discount the figures and think in terms of enforcement, delay, binding commitments, water safeguards, and exposure.

### Individual Step Success Rates

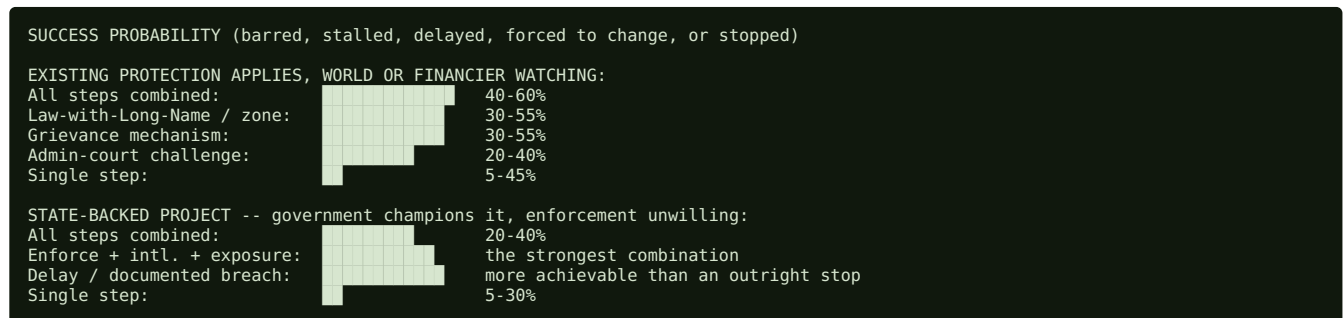
| Approach                                                                   | Success Rate | Timeline      | Cost         | What "Success" Means                                        |
|----------------------------------------------------------------------------|--------------|---------------|--------------|-------------------------------------------------------------|
| Documentation only                                                         | 5-10%        | 1-3 months    | low          | Basis for every other step                                  |
| Public participation in the EIA                                            | 15-35%       | during review | low          | On record; conditions or a redo                             |
| Invoking the Law with the Long Name / protected-area status                | 30-55%       | 6-36 months   | low-moderate | Licence challenged as unlawful; mining barred from the zone |
| Administrative Cases Court challenge                                       | 20-40%       | 12-36 months  | moderate     | Licence or approval quashed or reviewed; delay              |
| Water-permit / river-diversion challenge                                   | 20-45%       | 6-30 months   | low-moderate | Water safeguards forced; diversion contested                |
| International grievance mechanism (CAO/EBRD/ADB)                           | 30-55%       | 12-48 months  | low          | Binding commitments, compensation, safeguards               |
| Documenting a legal violation (mining in a protected zone)                 | 25-45%       | 3-18 months   | low          | Breach exposed; leverage; possible sanction                 |
| Mass, connected public mobilisation                                        | 25-45%       | 6-36 months   | low          | Political cost; a project reconsidered                      |
| All steps combined (existing protection applies, world/financier watching) | 40-60%       | 12-36 months  | low-moderate | Barred, stalled, delayed, or forced to change               |
| All steps combined (state-backed, enforcement unwilling)                   | 20-40%       | 12-48 months  | low-moderate | Delayed, exposed, conditioned; rarely stopped outright      |

**Key insight:** all steps together beat any single one, and Mongolia's real strengths are unusual — an **environmental-assessment law** with genuine procedural requirements, including mandatory local consultation; a **body of water-and-forest and protected-areas law** that puts whole categories of land off-limits to mining, most famously the **Law with the Long Name**; **Administrative Cases Courts** built to let citizens challenge government acts; a **constitutional right to a healthy environment**; a **right-to-information law**; a **combative free press and seasoned national movements**; and, for the big foreign-financed mines, **international grievance mechanisms** that reach a company's financiers. Its constraints are a **state and economy dependent on mining**, **chronic non-enforcement** of the very protections on the books, repeated **attempts to weaken** those protections, and a landscape so **vast and remote** that monitoring is genuinely hard.

*A note on cost: participating, documenting, and organising are inexpensive, and national movements and international allies have supported community cases — the Khanbogd herders were assisted through the grievance process by the*

*national watchdogs Oyu Tolgoi Watch and Gobi Soil and by the international organisation Accountability Counsel. The expenditure that most changes outcomes is committed legal and technical support and the reach of an international or grievance-mechanism campaign — both of which Mongolian communities have marshalled before.*

## Effectiveness Visualization



**How to read this honestly.** The levers that most change outcomes in Mongolia are **the existing water-and-forest protections and the international/grievance spotlight**, reinforced by the assessment challenge, the Administrative Cases Courts, and documented violations. The river movements show the ceiling: herders wrote a national law and won a Supreme Court order compelling the government to enforce it. The Khanbogd herders show the practical win: a foreign-financed mine bound to dozens of commitments on water, pasture, and compensation. The floor is set by chronic non-enforcement, repeated attempts to weaken protections, and the risk that resistance is met with arrest. Most Mongolian fights sit between them, and the honest lesson is that Mongolia's protections are real but often unenforced — so much of the win is forcing enforcement, exacting binding commitments and safeguards, delaying, and exposing, as much as an outright, permanent stop.

## Step Importance Ranking (When All Combined)

1. **The existing protection that already bars the project** — the Law with the Long Name over a headwater or forest, or a special-protected-area or water-zone status. Where it applies, this is Mongolia's strongest and most distinctive lever, because the fight becomes forcing officials to obey a law already on the books.
2. **The international or financier spotlight** — for a foreign-financed or listed project, the grievance mechanism (CAO/EBRD/ADB) and investor pressure a company cannot escape, as at Khanbogd.
3. **Documentation of violations and the assessment's defects** — the record, including any mining or diversion inside a protected zone and any consultation that never happened, that grounds every other step.
4. **The Administrative Cases Courts and the assessment/licence challenge** — the legal route against the government act, real but slow, and best paired with the levers above.
5. **The water safeguards, the press, and mobilisation** — the further fronts that protect the water, expose the harm, and sustain the campaign.

## What Mongolian Campaigns Actually Show

A few patterns recur. **Communities can move national law** — the Ongi River Movement and the United Movement of Mongolian Rivers and Lakes, born from the drying of the Ongi River, drafted and through a hunger strike forced Parliament to adopt on 16 July 2009 the Law with the Long Name, barring mining at river headwaters, in water-reservoir zones, and in forests. **Courts can be made to compel the government** — in 2011 the Supreme Court agreed with the movements and ordered the government to enforce that law, and when inaction continued the movements returned to court in 2019 to sue over it. **Financier grievance mechanisms deliver concrete commitments** — the Khanbogd herders, over the Undai River diversion at Rio Tinto's Oyu Tolgoi mine in the South Gobi, used the IFC/MIGA Compliance Advisor Ombudsman and reached, in May 2017, agreements binding the company to roughly sixty commitments on water, pasture, compensation, and the protection of a sacred site. **But paper victories are not protection** — the Law with the Long Name has been chronically under-enforced, repeatedly targeted for weakening, and mining has continued in protected zones; and at Khanbogd, years later, herders still report unmet commitments, especially on clean water. **And resistance can carry risk** — in 2013 activists protesting amendments to weaken the water-and-forest law were arrested and prosecuted. The through-line: **stand on the protections that already exist and force their enforcement, document every violation and diversion, use the grievance mechanism if the project is financed, mobilise the press and the movements, and challenge the licence and assessment in the Administrative Cases Courts — and expect a long fight measured in enforcement, binding commitments, water safeguards, delay, and exposure as much as an outright stop.**



# STEP 1: TARGET IDENTIFICATION

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Before you can fight a project, you must understand it precisely. Vague opposition to "the mine" is weak; a specific challenge to a specific decision is strong. This step turns alarm into a target.

## The Five Core Questions

Answer these five questions, in writing, as fully as you can. They convert a threat into a plan.

**1. What exactly is the project, and who is behind it?** Name the project, the company that holds the licence, the operator, the parent company, and — if you can find it — the financier. Is it an exploration licence or a mining licence? Gold, coal, copper, fluorspar, something else? Placer mining in a riverbed, or a hard-rock open pit? A single licence, or one of many? The precise identity determines which levers apply — a foreign-financed mine opens the grievance mechanism; a placer operation in a river tells you the water-and-forest law may bar it outright.

**2. Where exactly is it, and what protected features does it touch?** Get the coordinates and the boundary of the licensed area, and overlay them on what you know of the land: Is it on or above a river's headwaters? In a water-reservoir protection zone? In a forest? Inside or bordering a special protected area? Near a spring, a sacred mountain or ovoo, or winter pasture that whole households depend on? This overlay is the single most important thing you can produce, because Mongolia's strongest protections are geographic — they forbid mining in defined zones. If the project touches one of them, you may have found your weakest link at the very start.

**3. What stage is it at, and what decision is imminent?** Is the licence being applied for, or already granted? Has an environmental assessment been screened, prepared, submitted, or approved? Is a public consultation scheduled? Is construction beginning? Identify the next decision and its date, because the openings in the process are time-bound and the earlier you engage, the more you can shape.

**4. What does it need next that it does not yet have?** Every project depends on permissions it has not all secured — a mining licence it has only applied for, a Detailed EIA not yet approved, a water permit, a land agreement, a financier's final sign-off. The permission it still needs is where it is most vulnerable. A project already in full production is far harder to stop than one waiting on its assessment or its water permit.

**5. Who else is affected, and who already opposes it?** List the bagh and soum households, the herder families, the neighbouring communities, the downstream water users, and any local officials, movements, or NGOs already concerned. You are almost never alone, and Mongolia has a dense network of experienced river-and-nature movements. Knowing who shares the stake tells you who your coalition can be.

## A Worked Example

Consider a herder community in a river valley who learn that an exploration licence has been granted over a block that includes the stream feeding their winter pasture, and that placer gold mining is beginning in the riverbed upstream.

Applying the five questions: **What and who** — a named company holds an exploration licence, now moving to placer extraction in the river; the community traces it to a small operator but notes the licence register and any financing.

**Where** — the block sits on the headwaters of a river and in the river's protection zone; overlaid on the map, it plainly falls within the kind of zone the Law with the Long Name protects, and it endangers a downstream spring the households drink from. **Stage** — exploration is granted but extraction is just beginning; no full Detailed EIA consultation with the herders has occurred, and the water permit for in-stream work is a live question. **What it needs next** — lawful operation in that zone at all, a proper assessment with real consultation, and a water permit; each is contestable. **Who else** — a dozen herder households, the downstream soum, and a national river movement that has fought exactly this kind of case before.

From those answers a strategy writes itself: **the project's fatal weakness is its location** — mining at a river headwater and in the water-protection zone is exactly what the Law with the Long Name forbids — reinforced by the absence of genuine consultation and the threat to the community's drinking water. The community's first moves are to document the licence and its overlap with the protected zone, to demand the environmental record, to bring in the river movement that knows the law, and to press the authorities to enforce the protection the law already provides. That is a far stronger position than generalized objection — and it is the position from which Mongolian communities have won before.

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# STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. A community that can prove what is happening — with dates, coordinates, photographs, and official records — is a community that can act. One that only has fears and rumours cannot. This step builds your evidentiary base in three layers.

## Layer 1: The Official Record

The first layer is the paper the project itself generates and the state holds. This is what makes a challenge credible, because it is the government's and the company's own record used against the decision.

Assemble, as far as you can obtain them: the **exploration and mining licence** details from the minerals register (holder, area, coordinates, dates); the **environmental impact assessment** — the general assessment, the Detailed EIA report if one exists, and the environmental management plan; the **record of public consultation** the assessment is legally required to contain; any **water-use permit** and any documentation of river diversion or damming; the **land decisions** allocating access; and any **inspection or monitoring reports**. Much of this you are entitled to request under the right-to-information law; some is held by the environment ministry, the minerals authority, the aimag, or the soum. The consultation record deserves special attention: the Detailed EIA is legally required to include the minutes of meetings with the affected local people, and if the assessment claims meetings that did not truly happen, or misrepresents what was said, that is a defect at the heart of the approval.

## Layer 2: The Physical and Environmental Reality

The second layer is the ground truth — what is actually happening and what is actually at stake, recorded in a way that will stand up.

Photograph and film the site and the activity: the rigs, the pits, the access roads, the river works, the fencing across pasture. **Record the date, the time, and the GPS coordinates of every image.** Map the licensed area against the protected features — the headwater, the reservoir zone, the forest, the spring, the pasture, the sacred site — because that overlay is your strongest single document. Record the state of the water before and, as the project proceeds, after: photograph the river's flow, the spring, the wells; note any drying, fouling, or diversion. Log the pasture and the livestock that depend on the water and land. Where you can, gather simple, dated measurements — a photograph of a river channel at the same spot over months tells a powerful story of a stream being lost. If it is at all possible, establish a baseline before the worst of the damage: photograph the river's flow, the level of the spring, the condition of the wells, and the state of the pasture as they are now, so that later change can be shown against a documented starting point. A simple record kept from the same vantage points, at the same times of year, becomes far more persuasive than any after-the-fact description, and it is precisely the kind of independent, community-held evidence that a joint fact-finding process or a court will value, because it does not depend on the company's own monitoring. This is the evidence that turns "we are worried" into "here is what is being destroyed, and here is where the law forbids it."

## Layer 3: The Human Impact

The third layer is the community's own testimony, and in Mongolia — a country of herders whose livelihoods are inseparable from land and water — it is powerful.

Collect statements from the affected herder households: who they are, how many livestock they hold, which pastures and waters they depend on, what has changed, and what they stand to lose. Record the loss of winter pasture, the drying of a spring, the fouling of a river, the disruption of seasonal movement, the harm to a sacred mountain or ovoo. Note the health of people and animals. Gather the community's own account of the consultation — whether they were genuinely informed and heard, or presented with a decision already made. These human records do two things: they are evidence of harm for a court or a grievance mechanism, and they are the material of a media and mobilisation campaign that can reach the aimag capital, the capital, and the world. A herder describing the sacred river his family has watered animals at for generations, now diverted around a pit, is worth more than any abstract objection.

Keep everything organised, backed up, and dated. A shared, secured archive — copies in more than one place — protects your work and lets your allies and lawyers use it.

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## WHAT TO GATHER, AND WHERE TO FIND IT

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This section is a practical checklist: the specific records that matter, and where in the Mongolian system to look for them. Not all will be available for every project, but knowing what to ask for — and being seen to ask precisely — is itself a source of strength.



**The licence.** From the minerals register: the exploration or mining licence holder, the licence number, the coordinates and area, and the grant and expiry dates. This establishes who holds what right, where — and whether the area overlaps a protected zone.

**The environmental impact assessment.** From the environment ministry (and often the company): the general assessment and its screening decision; the Detailed EIA report and its expert review; and the environmental management plan. Read them for what they assess and what they omit — especially water, cumulative impacts, and the protected features nearby.

**The consultation record.** By law the Detailed EIA must include the minutes of the meetings at which affected local people were consulted. Obtain them and compare them against reality: Were the meetings real? Were the right people there? Were their objections recorded? A fabricated or hollow consultation is a defect you can build a challenge on.

**The water permits and any diversion.** From the water authority and the assessment: the water-use permit, the volumes, the sources, and any plan to divert, dam, or re-channel a river. In arid Mongolia this is frequently the true heart of the matter, as the Undai River diversion was at Oyu Tolgoi.

**Protected-area and zone status.** From the environment ministry and protected-areas administration: whether the site lies in or near a special protected area, a water-reservoir protection zone, a river headwater, or a forest to which the Law with the Long Name or the protected-areas law applies. This is the map overlay that can decide the case.

**Land decisions.** From the soum and aimag land authorities: how land access was allocated and on what terms, and whether pasture rights and household possession rights were respected.

**Inspection and monitoring reports.** From the environment ministry's and aimag's inspectors: any record of monitoring, compliance, or violation. A documented breach — mining where it is forbidden, a diversion without proper permit — is leverage.

**Ownership and finance.** From company filings, financing announcements, and the disclosure documents of any development bank: who owns and operates the project, and who finances it. This tells you which international levers and grievance mechanisms are open to you.

**Using the right-to-information law.** Mongolia's Law on Information Transparency and Right to Information, adopted in 2011, gives citizens the right to seek and receive information held by public bodies, subject to defined exceptions such as state secrets. Use it deliberately: a written, specific request to the environment ministry, the minerals authority, or the aimag for the assessment, the consultation minutes, the water permit, and the monitoring reports both gathers evidence and puts officials on notice that the community is watching and organised. A refusal can itself be challenged.

The act of assembling this record changes how you are treated. A community that arrives with the licence coordinates, the assessment, the consultation minutes, and a map of the protected zone is a community that officials, companies, and courts take seriously.

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## STEP 3: BUILDING LOCAL OPPOSITION

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Documentation gives you a case; organising gives you power. In Mongolia, where herder movements have repeatedly moved national policy, a well-built local coalition is your engine. This step builds it in four phases.

### Phase 1: The Core Group

Start with a small, committed core — the households most directly affected, the herders who know the land and water, and a few trusted, energetic organisers. This group does the early work: the documentation, the first requests, the mapping of allies. Keep it tight enough to move quickly and decide clearly, and make sure it includes people with standing in the community — respected herders, elders, bagh figures — whose word carries weight locally. In Mongolia the credibility of the affected herders themselves is your greatest asset; the core group exists to organise around it, not to substitute for it.

### Phase 2: Broadening the Base

From the core, widen to the full circle of the affected: the bagh and soum households, the downstream water users, the neighbouring communities, and the local associations. Hold meetings where people can see the evidence and understand the stake — the map of the licensed area over the pasture and the river, the assessment, the consultation record. Give

people a clear, honest account of what is proposed, what it threatens, and what the community can lawfully do. The aim is a broad, informed base that can speak with one voice at the soum khural, in the press, and to the authorities. Breadth matters: a fight that visibly involves many households and a whole soum is far harder to dismiss than one attributed to a handful of malcontents.

## Phase 3: Allies and Expertise

Mongolia's decisive advantage for organised communities is its dense network of experienced national movements and NGOs. Reach out to them early. The river-and-lake movements — the Ongi River Movement and the United Movement of Mongolian Rivers and Lakes among them — have fought exactly the headwater-and-forest fights this guide describes, drafted the law that protects those places, and know the courts, the ministries, and the press. Watchdog and legal-aid groups can provide legal and technical support. National environmental organisations can bring hydrologists, ecologists, and lawyers, and can amplify your case to the capital and beyond. For a foreign-financed project, national watchdogs such as Oyu Tolgoi Watch and international accountability organisations such as Accountability Counsel — of the kind that assisted the Khanbogd herders through the grievance process — can help you use the financier's own mechanisms. These allies convert a local worry into a national and sometimes international campaign. Bring them in as partners, share your documentation, and let their experience shape your strategy.

## Phase 4: Structure and Sustainability

A fight against a large project is long — often measured in years. Build a structure that can last: clear roles, a shared and secure archive, a way to make decisions, a means to keep the wider community informed, and a plan for the emotional and practical toll of a long campaign. Decide early how you will handle pressure and risk — because, as the 2013 arrests warn, resistance in Mongolia can bring personal consequences, and a community should go in with its eyes open and its solidarity firm. Sustainability is itself a form of power: many projects count on communities tiring, and a coalition that endures is one that can wait out delays, appeals, and the company's attempts to divide it.

## A Worked Coalition Example

Return to the river-valley herders. Their core group — five affected households and two organisers — gathers the licence coordinates, the assessment, and the map showing the block over the river's headwaters. They broaden the base by holding a bagh meeting where every household sees the map and understands that a law exists that forbids mining exactly there; the soum khural takes up the concern. They bring in a national river movement that recognises the case immediately, lends a lawyer and a hydrologist, and helps frame the demand as enforcement of the Law with the Long Name. They build a simple structure — a documentation lead, a spokesperson, a liaison to the movement, a secure shared archive — designed to last. Within months the community has moved from a dozen frightened families to an organised coalition with national allies, a legal theory, and a clear demand: apply the law that already protects this river. That is the position from which Mongolian communities have won.

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## STEP 4: LEGAL CHALLENGES

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Law is one of Mongolia's real levers, because the country built a court system specifically to let citizens challenge the government's acts. This section explains the routes, honestly, including their limits.

### The Administrative Cases Courts

The most important legal fact for a Mongolian community is the existence of the **Administrative Cases Courts**, established by Parliament in 2004. Their entire purpose is to review the lawfulness of administrative acts — the decisions of officials and public bodies — including the kinds of decisions that authorise a project: a licence, an environmental assessment approval, a land allocation, a permit. If a government act was unlawful — issued in breach of the Law with the Long Name, without the assessment the law requires, without the consultation the assessment must contain, or over a protected zone where mining is forbidden — the administrative court is where that unlawfulness can be tested.

The route has two stages. First, a citizen or legal entity ordinarily raises the complaint with the body that issued the act or with the relevant higher administrative authority, giving the administration a chance to correct itself. If that fails, the matter goes to the administrative court, with appeal to the appellate administrative court and ultimately the administrative chamber of the Supreme Court. The target of the case is always the "administrative act or action" and its validity and legality — so frame your challenge as: *this specific decision was made unlawfully, and here is the law it broke.*

The common acts open to challenge are exactly the ones a project depends on: licensing, land-related regulation, and permits.

## Standing on Existing Protections

The strongest legal ground in Mongolia is frequently not a novel argument but the enforcement of a protection already on the books. The Law with the Long Name forbids mineral exploration and mining at river headwaters, in the protection zones of water reservoirs, and in forested areas. The protected-areas law puts special protected areas off-limits. The Water Law and the Law on Forests guard water sources and forests. Where a licence or an assessment authorises a project inside one of these protected categories, the decision is vulnerable precisely because it conflicts with a clear statutory prohibition. This is why the map overlay from Step 1 matters so much: proving that the project sits in a protected zone can turn the case from a contest of expert opinions into a straightforward question of whether officials obeyed the law.

## The Constitutional Dimension

The Constitution of Mongolia guarantees, in Article 16.2, the right to live in a healthy and safe environment and to be protected against environmental pollution and ecological imbalance, and it treats the country's land, its subsoil, forests, water, and natural resources as subject to state protection. Where a law or an act offends the constitution, the matter can be brought — through the courts and ultimately the Constitutional Court, the Tsets — as a constitutional question. This is a higher and slower route, but the constitutional environmental guarantee is a real backdrop against which the specific laws are read, and it strengthens the argument that officials must apply the protections the ordinary laws provide. Indeed the Law on Environmental Impact Assessment states its own purpose as implementing that constitutional guarantee. The Water Law deserves particular attention in an arid country: it protects water sources and their protection zones, governs water use and permitting, and — read together with the Law with the Long Name — is often the sharpest statutory ground where a project threatens a river, a spring, or a reservoir. There is also a further constitutional pathway worth knowing: where an ordinary court forms the view that a law or an international treaty conflicts with the Constitution, it can channel that concern toward the Supreme Court and, ultimately, the Constitutional Court, so a constitutional environmental argument need not be abandoned merely because it cannot be resolved by the administrative court alone.

## International and Financier Mechanisms — Often the Sharpest Route

For a project financed by an international institution, the grievance mechanism of that institution is frequently the most effective legal-style route available, and it does not depend on the Mongolian courts. The Khanbogd herders' case is the model: because Oyu Tolgoi was financed by the IFC and guaranteed by MIGA, the herders — with the national NGOs Oyu Tolgoi Watch and Gobi Soil and the international organisation Accountability Counsel — brought complaints to the **Compliance Advisor Ombudsman (CAO)** in October 2012 and February 2013 over the Undai River diversion, entered a dispute-resolution process that ran from 2013 to 2017, and in May 2017 reached Complaint Resolution Agreements binding the company to a long list of commitments on water access, fractured pastureland, compensation, and the protection of a sacred site. The EBRD and the Asian Development Bank have their own accountability mechanisms; a listed parent company answers to investors and home-country scrutiny. These mechanisms can deliver binding commitments and safeguards that a domestic court might never order, and they run in parallel to everything else. If your project is financed from abroad, treat the grievance mechanism as a primary route, not an afterthought.

## The Honest Limits

Be clear-eyed. The Administrative Cases Courts are real but slow, and litigation against a state-backed project is uncertain and can take years. The deepest Mongolian problem is not the absence of law but its non-enforcement: the river movements won a Supreme Court order in 2011 directing the government to enforce the Law with the Long Name, and yet enforcement remained chronically inadequate, forcing them back to court for illegal inaction in 2019. A court victory that the government drags its feet to implement is a partial victory that must then be enforced in turn. And at Khanbogd, even after the 2017 agreements, herders reported years later that key commitments — above all on clean water — remained unmet. So use the legal routes — they are among your sharpest levers — but pair them with organising, the press, and the financier mechanisms, and measure success in enforcement, delay, binding commitments, and safeguards as well as outright annulment.

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## TURNING YOUR EVIDENCE INTO ARGUMENTS

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Evidence does not speak for itself. To move an official, a court, a grievance mechanism, or the public, you must turn what

you have gathered into clear, specific arguments aimed at the right decision. This section shows how.

**From a document to a legal defect.** Do not simply hand over the assessment; identify what is wrong with it. If the consultation minutes describe meetings the community says never happened, the argument is: *the assessment's public participation was not genuine, as the law requires, and the approval built on it is therefore defective*. If the assessment ignores the river or the spring the project will destroy, the argument is: *the assessment failed to assess a central impact, and cannot lawfully support approval*. Tie every defect to the specific requirement it breaches.

**From a map to a prohibition.** The overlay of the licensed area on a protected headwater, forest, or water-reservoir zone becomes: *this project lies within an area where the Law with the Long Name (or the protected-areas law) forbids mining, and the licence should never have been granted — the authorities must enforce the prohibition*. This is often the most powerful argument you can make, because it turns the case into a simple question of obeying an existing law.

**From photographs to a documented violation.** Dated, located images of mining or a diversion inside a protected zone become: *here is proof that the project is operating unlawfully, at this coordinate, on this date — and here is the enforcement the law requires*.

**From testimony to harm.** The herder households' statements become: *this project is destroying the water and pasture that these named families and their livestock depend on, in violation of their rights and of the environmental guarantee the constitution provides*.

**From finance to leverage.** The financing record becomes: *this project is financed by an institution whose standards and grievance mechanism the community is entitled to invoke — and the community is invoking them*.

Match the argument to the venue. To the environment ministry, argue the assessment's defects and demand enforcement. To the administrative court, argue the unlawfulness of the specific act. To the grievance mechanism, argue the breach of the financier's standards and the concrete harm. To the press and the public, argue the human story — the drying river, the sacred site, the herders forced off pasture. The same evidence, aimed differently, does different work.

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## STEP 5: MEDIA STRATEGY

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In Mongolia, publicity is power. The country has a free and combative press, an intensely engaged public, and a history in which national attention has forced the government's hand. For a foreign-financed project, international coverage reaches the financiers and the parent company. This step turns your evidence and your story into pressure.

### Why Media Matters Here

Mongolia's river movements did not win by litigation alone; they won by making the fate of the rivers a national issue that Parliament could not ignore, culminating in the public drama of a hunger strike at the Parliament House. The Khanbogd herders' case drew international attention to a Rio Tinto mine and the sacred river it diverted. Publicity does three things: it raises the political cost of a harmful decision, it reaches the financiers and investors who care about reputation, and it protects the campaigners themselves, because a watched community is harder to intimidate. The record bears this out. The river movements turned a regional grievance into a national cause that Parliament could not brush aside, and their leader's work drew international recognition when Munkhbayar received the Goldman Environmental Prize in 2007 — attention that both honoured the campaign and shielded it. At Khanbogd, international coverage of a sacred river diverted around a Rio Tinto pit reached exactly the audiences — financiers, investors, and a global public — that a company most wishes to keep comfortable. Publicity is not a substitute for the legal and organising work, but it multiplies their force, and in Mongolia it has repeatedly been the difference between a complaint that is quietly filed away and one the powerful feel compelled to answer.

### Building the Story

Lead with the human and the concrete, not the technical. The story is not "an environmental assessment was procedurally deficient"; it is "the river our families have watered animals at for generations is being cut off around a mine pit, and the spring we drink from is drying." Use your strongest material: the dated photographs of the river and the pit, the map of the licensed block over the protected headwater, the testimony of named herders, the fact — where it applies — that a national law already forbids exactly this. Keep the facts scrupulously accurate; your credibility is your armour.

### Reaching the Audiences

Work several audiences at once. **Local and national press** in Mongolian carry the story to the aimag capital and the capital, where political pressure builds. **National movements and NGOs** amplify and lend authority. **International media and networks** matter especially for foreign-financed or foreign-owned projects, because they reach the financiers, the parent company's investors, and the home-country public. **Social media** lets the community speak in its own voice and document in real time. Provide ready material — clear photographs with captions, short accurate summaries, a map, a few compelling testimonies — so that journalists and allies can carry your story faithfully.

## Discipline and Care

Two cautions. First, accuracy above all: one exaggeration handed to the other side can be used to discredit everything. Second, care for people's safety: resistance in Mongolia has at times been met with arrest and prosecution, so weigh what you publish, protect vulnerable individuals, and let the community decide together what it is willing to say publicly. Used with discipline, the press is among the most powerful and protective levers a Mongolian community has.

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## EMAILS & LETTERS

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Below are eight templates for the written communications a campaign most often needs. Adapt them to your facts; keep them precise, calm, and specific; and keep copies of everything you send.

### **8A — Requesting the environmental assessment and consultation record (to the environment ministry).**

*Subject: Request under the Law on Information Transparency — environmental assessment and consultation record for [project/licence].* "We, residents of [bagh/soum], request, under the Law on Information Transparency and Right to Information, copies of the general and detailed environmental impact assessments, the environmental management plan, and the record of public consultation for [project], licence [number], in [location]. As affected residents we are entitled to this information. Please provide it within the period the law allows, or state your legal reason for withholding it. [Contact.]"

**8B — Requesting the licence and its coordinates (to the minerals authority).** *Subject: Request for licence details — [licence number / area].* "We request the details of exploration/mining licence [number] held by [company] in [location]: the licence holder, the area and coordinates, and the grant and expiry dates. We make this request as residents affected by activity under this licence. [Contact.]"

**8C — Demanding enforcement of the Law with the Long Name (to the environment ministry and aimag governor).** *Subject: Unlawful mining in a protected water/forest zone — [project/location].* "The licensed area of [project] lies at the headwaters of [river] / within the protection zone of [reservoir] / in [forest], where the Law to Prohibit Mineral Exploration and Mining Operations at the Headwaters of Rivers, Protected Zones of Water Reservoirs and Forested Areas forbids mining. We attach a map and coordinates. We call on you to enforce the prohibition, suspend the activity, and inform us of the action you will take. [Contact.]"

**8D — Formal objection during the assessment/consultation (to the environment ministry).** *Subject: Objection to the environmental impact assessment for [project].* "We object to the approval of the assessment for [project] on the following grounds: [the consultation recorded did not genuinely occur / affected households were not consulted]; [the assessment fails to address the impact on [river/spring/pasture]]; [the project lies within a protected zone]. We ask that approval be refused or that a proper detailed assessment with genuine consultation be required. [Attach evidence.]"

### **8E — Administrative complaint before litigation (to the issuing body / higher administrative authority).**

*Subject: Complaint against [the decision] — [licence/approval] for [project].* "We formally complain that [the decision to grant licence/approve the assessment] is unlawful, because [it authorises mining in a protected zone / it rests on an assessment lacking the consultation the law requires / it disregards the impact on protected water]. We ask that the decision be reviewed and set aside. If it is not, we intend to bring the matter before the Administrative Cases Court. [Attach evidence.]"

**8F — Complaint to an international grievance mechanism (for a financed project).** *Subject: Complaint regarding [project] financed by [IFC/MIGA/EBRD/ADB].* "We, affected herders of [soum], submit this complaint regarding [project], operated by [company] and financed/guaranteed by [institution]. The project [diverts/threatens [river]], harms our pasture and water, and was approved without adequate consultation, contrary to [the institution's standards]. We request that the mechanism assess our complaint and facilitate a resolution addressing water, pasture, compensation, and the protection of [sacred site]. [Attach evidence and testimonies.]"

**8G — Letter to the press (national or international).** *Subject: Herders move to protect [river/pasture] from [project].* "For generations, families of [soum] have watered their herds at [river] and depended on [spring/pasture]. Now [project], licensed to [company] and [financed by ...], threatens to [divert the river / dry the spring / take the pasture] — in an area a

national law already protects. We can provide photographs, coordinates, a map, and interviews. [Contact.]"

**8H — Letter to a national movement or NGO seeking partnership.** *Subject: Request for support — [project] at [location].* "Our community faces [project] at [river headwater / forest / protected zone]. We have gathered [the licence, the assessment, a map, photographs, testimonies]. We believe the Law with the Long Name / protected-areas law applies. We ask for your support — legal, technical, and in raising the case nationally — and we are ready to work as partners. [Contact and summary of evidence.]"

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## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

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Not every community has months and a lawyer at the outset. If you must act fast and lean, do these things, in this order, and you will have done the most important work.

**1. Pin down the project and its location.** Get the licence number, the company, and above all the coordinates of the licensed area. Overlay it, even roughly, on the river headwaters, the forest, the protected zone, the spring, the pasture. If it touches a protected zone, you may already have your strongest argument.

**2. Photograph everything, with dates and locations.** The rigs, the pit, the road, the river works. Dated, located images are the evidence that matters most and cost nothing.

**3. Demand the record in writing.** Send a short right-to-information request (8A/8B) for the assessment, the consultation minutes, the licence, and the water permit. The request itself puts officials on notice and starts the clock.

**4. Raise the alarm locally and find your allies.** Hold a bagh meeting; get the soum khural's attention; and contact a national river-and-nature movement or NGO immediately (8H). Mongolia's movements have fought this fight before and can move faster than you can alone.

**5. If the project is financed from abroad, note it — and prepare to use the grievance mechanism.** Identify the financier from any public document. The financier's mechanism (8F) may be your sharpest route and does not depend on the courts.

**6. Make the demand simple and lawful.** Where a protection applies, the demand is: *enforce the law that already forbids this here* (8C). Where the assessment is defective, the demand is: *refuse approval and require genuine consultation* (8D). A clear, lawful demand backed by a map and photographs is powerful even on a shoestring.

Even with little time, these six steps create a record, a demand, and a coalition — the three things every later step is built on.

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## WHEN THE SYSTEM IS TILTED

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Much of this guide assumes the ordinary machinery works: assessments are reviewed, complaints are heard, courts decide, protections are enforced. Often in Mongolia they do not — not because the law is absent, but because it is not applied. This section is about acting when the system is tilted against you.

### The Core Mongolian Problem: Non-Enforcement

Mongolia's defining difficulty is the gap between law and enforcement. The Law with the Long Name is the clearest case: herders forced it onto the statute book in 2009, the Supreme Court ordered its enforcement in 2011, and yet mining continued in protected zones and the movements were driven back to court over the government's inaction in 2019. The lesson is not that the law is worthless — it is real, and it is a lever — but that **winning the law is only half the fight; forcing its enforcement is the other half.** Plan for it. A court order or an approval condition is a beginning, not an end, and you may need to return, again and again, to compel implementation — through fresh litigation over inaction, through the press, through political pressure, and through the record you keep of every violation.

### When Protections Are Under Attack

A second form of tilt is the attempt to weaken the protections themselves. The Law with the Long Name has repeatedly



been targeted for amendment by the mining ministry and industry seeking to open protected zones. When protections are under legislative attack, the fight shifts to the political and public arena: mobilise the movements, raise the alarm in the press, and make the cost of gutting a popular environmental law visible to legislators. The 2013 confrontation over such amendments — and the arrests that followed — is a stark reminder that this arena can be dangerous, and that peaceful, disciplined, well-publicised pressure, backed by broad public support, is both safer and more effective than desperation.

## When Officials Will Not Act

Where officials refuse to enforce the law or to hear a legitimate complaint, escalate methodically. Put every request and refusal in writing, so that inaction is documented. Take the refusal itself to the next level — the higher administrative authority, then the Administrative Cases Court, which can review not only unlawful acts but, as the river movements showed, unlawful inaction. Bring in the National Human Rights Commission where rights are threatened, and the Independent Authority Against Corruption where a decision smells of corruption. And make the inaction public: an official who ignores a quiet letter may act when the failure is on the front page and national movements are watching.

## When to Reassess

Be honest with your community about the odds. Against a state-backed, already-producing project, with enforcement agencies unwilling and the courts slow, an outright permanent stop may not be achievable, and it is not a failure to say so. In that situation the realistic and still-valuable wins are enforcement of the protections that do apply, binding commitments and compensation through a grievance mechanism, water safeguards, delay that buys time and changes circumstances, and exposure that raises the cost of the harm. Choose the fight you can win, protect your people, and keep the record — because circumstances, governments, and financiers change, and a well-documented campaign is ready when they do.

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# WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Sometimes the tilt is not mere inertia but corruption — a licence that should never have issued, an assessment approved against the evidence, an official with an interest in the outcome. Mining licensing is chronically exposed to it. This section is about recognising and confronting capture, carefully.

## Recognising the Signs

Corruption rarely announces itself, but there are patterns. A licence granted over a plainly protected zone, in defiance of the Law with the Long Name, suggests either gross negligence or influence. An assessment approved despite obvious defects, a consultation recorded that never happened, a monitoring report that ignores visible violations, an official who moves between the regulator and the industry, a licence transferred through opaque intermediaries — each is a warning sign. So is the sudden, unexplained reversal of an official's position, or the appearance of pressure on local officials who had been sympathetic.

## Who Is Supposed to Guard Against It

Mongolia has built machinery against corruption. The **Independent Authority Against Corruption (IAAC)** investigates corruption offences, officials are obliged to report corruption-related information, and judges and officials must file asset and income declarations. The **Glass Account Law** requires transparency in the management of public budgets and property, giving citizens a window into public spending. The **right-to-information law** lets you extract the record. The **free press** and watchdog NGOs investigate and expose. And the **Administrative Cases Courts** can annul acts tainted by illegality. These are the venues to which evidence of corruption should be directed. It helps to know the wider context: Mongolia's legal framework mandates transparency of information that is not a state or officially sensitive secret, and public hearings and discussions are formally required before laws and regulations are adopted — though implementation of these participation duties is widely acknowledged to be weak, and governments have at times sought to suppress public concern over the lack of genuine engagement. That gap between the transparency the law promises and the practice on the ground is itself something to document and to raise, because a decision made without the public process the law requires is a decision that can be questioned.

## How to Confront It — Safely

Confronting corruption demands even more care than ordinary campaigning. **Document rigorously and factually** — dates, decisions, documents, connections — and distinguish always between what you can prove and what you suspect. **Do not make public accusations you cannot substantiate**, both because they can be used to discredit you and because they can expose you to legal and personal risk. **Route serious evidence to the proper bodies** — the anti-corruption authority, the courts, established investigative journalists and watchdog NGOs — rather than confronting powerful interests alone. **Protect the people involved**, especially insiders and witnesses. And **lean on your allies**: national movements and watchdogs know how to handle such material and can shield individuals. Corruption is real in Mongolian mining, and it can be confronted — the country's anti-corruption architecture exists — but it must be confronted with evidence, through institutions, and with sober attention to the safety of everyone involved.

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## INTEGRATION & TIMELINE

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The steps in this guide are not a menu from which to pick one; they are strands to be woven together. This section shows how they fit, and over what kind of time.

### How the Strands Reinforce One Another

Documentation feeds everything: it is the basis of the assessment objection, the administrative complaint, the grievance-mechanism submission, the press story, and the enforcement demand. Organising gives the documentation weight and the campaign endurance. The legal routes — the assessment challenge, the administrative court, the enforcement of existing protections — turn the record into binding decisions. The grievance mechanism, for a financed project, turns it into binding commitments without waiting on the domestic courts. The press turns it into political and reputational cost. And the enforcement follow-through turns paper victories into protection on the ground. Each strand is stronger for the others: a court case amplified by the press and backed by an organised community and a national movement is a different thing from a lonely lawsuit, and a grievance complaint reinforced by public attention is far harder for a company to slow-walk.

### A Realistic Timeline

Expect a long campaign. In the **first weeks**, pin down the project, gather the initial documentation, send the information requests, raise the local alarm, and reach out to national allies. In the **first few months**, build the coalition, obtain and analyse the assessment and the licence, produce the map overlay, and lodge formal objections or an administrative complaint — and, for a financed project, prepare the grievance submission. Over the **following one to three years**, pursue the legal routes and the grievance process, sustain the press and public campaign, and — crucially — press the enforcement of any protection or order you win. The river movements' fight has run for two decades; the Khanbogd herders' grievance process ran from 2013 to the 2017 agreements and continues into monitoring years later. Build for endurance, mark and celebrate the interim wins — a suspension, a condition, a binding commitment, a documented violation acted on — and understand that in Mongolia the decisive struggle is often not to win the rule but to make it real.

### Holding Two Truths

Throughout, hold the two truths this guide began with. Mongolia gives organised communities genuine levers — a real assessment law, geographic protections that forbid mining outright, courts built for citizens, a right to information, a fierce press, seasoned movements, and international mechanisms for financed projects. And Mongolia's central weakness is that these protections are too often unenforced, sometimes under attack, and that resistance can carry risk. A community that understands both will neither despair nor overpromise. It will use every lever, force enforcement of the protections that apply, exact commitments and safeguards where a stop is out of reach, protect its people, and keep the record — and it will know that in Mongolia, more than almost anywhere, ordinary herders have shown that communities can move the law itself.

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## FINAL ASSESSMENT

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The honest bottom line for a Mongolian community facing a destructive project is this. **You are not powerless, and you are not without precedent — Mongolia is a place where herders have written national law and made the Supreme Court order the government to obey it.** The tools are real: an environmental-assessment law with mandatory consultation, a body of water-and-forest and protected-areas law that forbids mining in defined zones,

Administrative Courts built to challenge government acts, a constitutional right to a healthy environment, a right-to-information law, a combative press, experienced national movements, and — for foreign-financed projects — international grievance mechanisms that reach a company's financiers.

**But the tools work only when you force them to.** Mongolia's defining problem is not the absence of protection but its non-enforcement, and its protections are periodically under attack. The Law with the Long Name is both the country's proudest environmental achievement and the clearest proof of the gap: a law herders forced into being, a Supreme Court order to enforce it, and years of continued mining in the very zones it protects. So temper hope with realism. Where an existing protection applies and the world or a financier is watching, your chances of barring, stalling, or reshaping a project are genuine — the river movements and the Khanbogd herders are the proof. Where the state and the industry back the project and enforcement agencies will not move, an outright stop is hard, and the realistic wins are enforcement, binding commitments, compensation, water safeguards, delay, and exposure.

Whatever your situation, the method is the same: identify the project and its weakest link precisely, document relentlessly with dates and coordinates and maps, stand on the protections that already exist, organise a broad and enduring coalition, bring in the movements and — for financed projects — the grievance mechanisms, challenge the unlawful acts in the administrative courts, take the story to the press, and follow through to force enforcement. Combine the strands, protect your people, keep the record, and endure. Mongolia's own herders have shown, more than once, that a determined community can move not just a project but the law of the land. Their record is your reason to begin.